

VOLUME I, PAGES 1 TO 334

No. 2018-2311

**In the United States Court of Appeals
For the Federal Circuit**

IN RE: CHARLES T. FOTE,

Appellant.

On Appeal from the Patent Trial and Appeal Board
Appeal No. 2017-003210

JOINT APPENDIX

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Prosecution History for Application No. 14/455,526

Date	Document
08/08/2014	Transmittal of New Application
08/08/2014	First Action Interview - Enrollment Request
08/08/2014	Nonpublication request from applicant
08/08/2014	Drawings-only black and white line drawings
08/08/2014	Application Data Sheet
08/08/2014	Fee Worksheet (SB06)
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08/21/2014	Fee Worksheet (SB06)
08/21/2014	Filing Receipt
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11/06/2014	Information Disclosure Statement (IDS) Form (SB08)
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03/04/2015	Transmittal Letter
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08/23/2018	Notice of Appeal Filed
08/23/2018	Affidavit/Dec/Exhibit after Notice of Appeal
08/27/2018	Notice of Appeal Filed

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

APPLICANTS:	Charles Fote	CONFIRMATION NO.:	6430
SERIAL NO.:	14/455,526	GROUP NO.:	3691
FILING DATE:	August 8, 2014	EXAMINER:	O. Akintola
TITLE:	BROKER-MEDIATED PAYMENT SYSTEMS AND METHODS		

Mail Stop Amendment
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

AMENDMENT AND RESPONSE

This paper is responsive to the non-final Office Action mailed on November 25, 2015 in the above-identified patent application (the "Office Action").

Listing of claims begins on page 2 of this paper; and

Remarks begin on page 5 of this paper.

Submitted herewith is a petition for a three-month extension of time. The Director is hereby authorized to charge the fees associated therewith to our Deposit Account No. 50-0310 under Reference No. FOT-002C1. Applicant believes that no additional fees are necessitated by the present paper. However, in the event that any fees are due, the Commissioner is hereby authorized to charge such fees to Deposit Account No. 50-0310 (FOT-002C1).

REMARKS

The undersigned thanks the Examiner and his supervisor for their time, hospitality and courtesy during the in-person interview that took place on January 13, 2016. The undersigned notes that the discussion focused on the arguments presented herein. Accordingly, this paper is intended to constitute a proper recordation of the interview in accordance with MPEP §713.04, and also to provide a full response to the Office Action.

After entry of this amendment, claims 3, 4, 5, and 8 will be pending in this application. Claims 3, 4 and 8 are amended herein. Support for the claim amendments may be found throughout the specification as originally filed at page 9, line 6 to page 9, line 12; page 13, line 7 to page 13, line 12; page 44, line 2 to page 44, line 13 and page 44, line 29 to page 45, line 7 and in footnotes 3-7 below. No new matter has been added.

In the Office Action, the Examiner rejected claims 3-5 and 8 under 35 U.S.C. §101 as directed to a judicial exception “without significantly more”; and under 35 U.S.C. §103 as being unpatentable over U.S. Patent Publ. No. 2002/0062281 (hereafter “Singhal”) in view of U.S. Patent Publ. No. 2012/0296821 (hereafter “Scipioni”) and U.S. Patent No. 8,073,775 (hereafter “Del Favero”), and further in view of U.S. Patent Publ. No. 2009/0070263 (hereafter “Davis”).

Rejections Under §101

As discussed during the interview, we respectfully submit that the present claims recite a technical solution to a technical problem that has arisen only recently in the context of, and due to the very nature of, mobile electronic commerce. As such, we submit that the claims are patentable within the Office’s most recent §101 guidance issued on December 16, 2014¹ (hereafter the “Interim Guidance”) and under relevant judicial precedent, in particular, *DDR Holdings, LLC v. Hotels.com, L.P.*, 773 F.3d 1245 (Fed. Cir. 2014) (hereafter “*DDR*”). The *DDR* court noted that while

¹ 2014 Interim Guidance on Patent Subject Matter Eligibility, 79 Fed. Reg. 74618.

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

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FILING DATE:	August 8, 2014	EXAMINER:	O. Akintola
TITLE:	BROKER-MEDIATED PAYMENT SYSTEMS AND METHODS		

Mail Stop After Final
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RESPONSE AFTER FINAL REJECTION

This paper is responsive to the final Office Action mailed on May 31, 2016 in the above-identified patent application (the “Office Action”).

Listing of claims begins on page 2 of this paper; and

Remarks begin on page 5 of this paper.

Applicant believes that no additional fees are necessitated by the present paper.

However, in the event that any fees are due, the Commissioner is hereby authorized to charge such fees to Deposit Account No. 50-0310 (FOT-002C1).

REMARKS

The undersigned thanks the Examiner for his time and courtesy during the telephone interview that took place on June 28, 2016. The undersigned notes that the discussion focused on the arguments presented herein. Accordingly, this paper is intended to constitute a proper recordation of the interview in accordance with MPEP §713.04, and also to provide a full response to the Office Action.

After entry of this amendment, claims 3, 4, 5, and 8 will be pending in this application. No claims are amended, and this paper addresses only the prior-art rejections set forth in the Office Action in order to place the application in better condition for appeal. In particular, the Examiner rejected claims 3-5 and 8 under 35 U.S.C. §103 as being unpatentable over U.S. Patent Publ. No. 2002/0062281 (hereafter “Singhal”) in view of U.S. Patent Publ. No. 2012/0296821 (hereafter “Scipioni”) and U.S. Patent No. 8,073,775 (hereafter “Del Favero”), and further in view of U.S. Patent Publ. No. 2009/0070263 (hereafter “Davis”).

As discussed during the interview, the present claims recite a system topology different from that disclosed in the prior art. In particular, the claims recite a funding source server operated by a payer-selected funding source. It is this server that receives the request from the payment broker server, instructs the third party (which cannot be the payment broker) to make the payment electronically to the payee, and reimburses the third party. The claimed topology can be represented as follows:

Payer → broker → ***funding source*** → third party → third party’s financial institution → payee

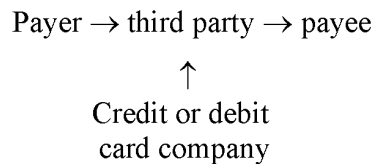
Del Favero, by contrast, contemplates the following topology:

Payer → broker → third party → payee

There is no funding source server in Del Favero's system; no funding source participates in the transaction, nor is any funding source even designated by the payer. Taking the funding source out of the picture means that (i) there is no identified way for the third party to be reimbursed for the payment check that it sends to the payee ("recipient"), and (ii) the payer must somehow have the third party reimbursed in a sufficiently separate transaction so as to avoid leakage of the payer's sensitive funding source and account information to the recipient.

Moreover, in Del Favero, the third party pays the payee by a physical check; the pending claims, by contrast, require a fully electronic series of transactions including electronic payment without divulgation.

Davis, too, omits the funding source from the payment transaction, requiring the third party advancing the payment to the payee to seek reimbursement from the payer's ("requester's") credit or debit card company in a separate later transaction:



That is, Davis does not disclose a funding source instructing a third party to make a payment on behalf of the funding source's customer from an account of the third party at the third party's financial institution so as to avoid divulgation of the payer's sensitive financial information. Once again, as set forth in ¶[0066] of Davis (cited by the Examiner), reimbursement is carried out separately from the payment transaction.

Moreover, in Davis, the third party acts as the payment broker, contrary to the limitations of claim 8, which requires "at least one third party *other than the payment broker* to make the payment electronically to the payee from a real account and financial institution associated with the third party and in the third party's name." Accordingly, the present claims cannot read on Davis.

In light of the foregoing, we respectfully submit that all claims are now in condition for allowance. Applicant believes that no additional fees are necessitated by the present response. However, in the event that any additional fees are due, the Commissioner is hereby authorized to charge any such fees to Deposit Account No. 50-0310.

Respectfully submitted,

Date: July 5, 2016
Reg. No. 33,497

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